Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Gina REGALI
Occupation	Full time carer
Address	Known to National Disability Insurance Scheme (NDIS)
Date	11 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Gina REGALI.

3. My residential address is known to the National Disability Insurance Scheme.

4. I am the mother of Angelus Regali-Park (Angel) and Indiana Regali-Park. Both of my sons are participants in the NDIS. The boys live with me in the family home. Angels NDIS plan is plan managed through Manage Mode. My contact there is Tim.

5. On 11 October 2022, I had a conversation with NDIA Investigator James LANE regarding concerns about claims that have been made against Angel's and Indiana's plan by service provider Forward Focus Group. I make this statement to record my dealings with Forward Focus Group.

6. Angel is a twenty-year-old boy who has been diagnosed with autism and has strict dietary requirements. He is also visually impaired being diagnosed with Erlands which effects his ability to see in bright light.

7. I started dealing with Forward Focussed Group as they were recommended to me by the NDIS because they were in Armadale where we live. I can't remember who I

spoke to but after I got the name, I contacted them by Phone. I spoke to a man who identified himself as Blake. He is the main person I have spoken to from the Forward Focus Group. I have also spoken with a woman named Sally when Blake was on leave.

8. Angel and I met with Blake at their office. At this time Blake completed some document on the tablet with Angel's details and then Angel to digitally sign it. I wanted to read the document and requested a hard copy. Blake advised me that it would be sent to me, but it never was.

9. We had a second meeting with Blake at their office and same as before, Blake completed some kind of computer-generated document and got Angel to sign it digitally. I asked for a hard copy and again he said it would be sent to me, but it never was.

10. Despite all the promises made to me they could provide the support that Angel needs, Forward Focussed Group did nothing that we asked for.

11. Both Angel and Indiana were taken out by Forward Focused Group on a boat cruise on the Swan River on New Year's Eve on December 2021. Prior to them going, I was assured by Blake that there would be a support worker on board the boat to look after Angel and Indiana. Blake told me the cruise would cost about $6000 each and I asked where the money would come from. Blake and Sally both told me Angel and Indiana have spare money in their plans. That sounded a bit off to me but they told me it wouldn't interfere with any of the other supports they had in place.

12. After Angel and Indiana went on the cruise, they told me there was no support worker and that the adults just got drunk. Blake was aware of Angel's dietary requirements and yet there was no food available for him to eat, so he ate nothing, and the cruise went for 5 hours.

13. I later became aware that Forward Focused group had claimed against Angel's plan for taking him on the cruise. I sent an email to Blake at forward focus group looking for an explanation. My emails went unanswered.

14. On 5 January 2022, I received an email from Tim from Management Mode with an attached invoice from "The Hive". I had never heard of The Hive or Hybrid Hive and I was told that The Hive was a supplier for Forward Focused Group. I can say that the services claimed on the invoice never happened. I contacted Sally by Email and she never got back to me.

EXHIBIT: I NOW PRODUCE GR01: AN INVOICE FROM THE HIVE DATED 24 DECEMBER 2021. DESCRIBED AS 2 PAGES.

15. On 14 January 2022, I sent an email to Blake with an attached monthly statement from Manage mode which records the claims made against Angel's plan and requested an explanation of what had been claimed. I did this because Angel did not at any time receive any services from anybody from Forward Focus Group. What we got from them was Zero. Blake did not respond.

EXHIBIT: I NOW PRODUCE GR02: A 3 PAGE MONTHLY ACTIVITY STATEMENT FROM MANAGEMENT MODE FOR THE PERIOD OF 5 DECEMBER 2021 TO 4 JANUARY 2022 IN RELATION TO THE ABOVE.

16. On 20 January 2022, I received an email from Tim at Manage Mode with an attached invoice dated 3 January 2022, from Forward Focused Group for two days of Short Term Accommodation. This did not happen, no one has ever taken Angel from home for any length of time and it certainly didn't happen on New Year's Day or the next day. It just didn't happen.

EXHIBIT: I NOW PRODUCE GR03: AN INVOICE FROM THE HIVE DATED THE 3 JANUARY 2022 RELATING TO THE ABOVE OF 1 PAGE.

17. On 25 January 2022, I received an email from Tim at Manage Mode with an attached invoice dated 25 January 2022, from Forward Focused Group claiming for services for Angel. These services were self-management capacity building and support coordination. There were no supports to coordinate because there were no services. There were no services for self-management Capacity building. On 27 January 2022, I received a text from Blake telling me that "I believe the accounts

team was changing the invoices and fixing it and maybe sending a new one for confirmation' and a further text saying they were 'changing the dates on the December Hive invoice'.

EXHIBIT: I NOW PRODUCE GR04: AN INVOICE FROM FORWARD FOCUSED GROUP DATED THE 25 JANUARY 2022 RELATING TO THE ABOVE OF 1 PAGE.

18. On 29 January 2022, I received an email from Tim at Management Mode asking if I had approved the payment of the invoice for services on the first and second of January. Attached to that message was an email from Rejaul Alam, Manager Accounts and Finance at Forward Focused Group advising that "we have been advised by the participants have approved the invoice".

EXHIBIT: I NOW PRODUCE GR05: AN EMAIL FROM TIM AT MANAGEMENT MODE RELATING TO THE ABOVE CONSISTING OF 9 PAGES.

19. I was never contacted by Forward Focused Group about approving the invoices and I did not give any approval to have the invoice paid.

20. After this fiasco I took steps in early February 2022 to get my boys well away from Forward Focused Group. I had nothing to do with them since.

21. James LANE asked me about two claims on Indiana's plan made by Forward Focused Group on 24 June 2022. $3431.46 was claimed for 67.9 hours for House Cleaning And Other Household Activities which was said to be provided on 1 January 2022 and asked me to comment.

22. Nobody came to clean my house and it just didn't happen. I never received any cleaning from Forward Focused Group.

23. To assist my statement, I refreshed my memory from my emails and documents regarding Angel and Indiana.

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Gina REGALI

Statement taken and signature witnessed by me about 12:00pm on 11 October 2022 at Armadale in Western Australia.

Signature _____
James LANE
Investigator
Armadale WA

GR01 PAGE 1 OF 2

THE HIVE

TAX INVOICE

Angelus Regali-Park

Invoice Date
24 Dec 2021

Invoice Number
INV-0116

Reference
NDIS 431035309

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime 01/12/2021 - 03/12/2021	4.75	57.10	GST Free	271.23
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 07/12/2021	2.00	57.10	GST Free	114.20
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 08/12/2021 - 10/12/2021	5.50	57.10	GST Free	314.05
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 13/12/2021	3.25	57.10	GST Free	185.58
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 15/12/2021	1.50	57.10	GST Free	85.65
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 17/12/2021	2.75	57.10	GST Free	157.03
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 20/12/2021 - 21/12/2021	2.30	57.10	GST Free	131.33
				Subtotal	1,259.07
				TOTAL AUD	1,259.07

Due Date: 30 Dec 2021
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Angelus Regali-Park
Invoice Number	INV-0116
Amount Due	1,259.07
Due Date	30 Dec 2021
Amount Enclosed	

Enter the amount you are paying above

To:
Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

Manage Mode
NDIS Plan Managers

Monthly NDIS Activity Statement

05 December 2021 - 04 January 2022

05 January 2022

Angelus Regali-Park
7 SCOTIA PL
ARMADALE WA 6112

Dear Angelus,

This is your NDIS Activity Statement for the period of **05 December to 04 January** for your NDIS Plan dated 23/08/2021 to 23/08/2023.

Please review the below information and if you have any questions, please do not hesitate to contact us by phone or email.

Please note that the figures below may not reflect a complete view of your NDIS plan or a complete view of your monthly and total payments due to the following:

- Some NDIS Support Areas may be paid directly by NDIS or paid directly by participant;
- The service may have been provided in a previous month, but not claimed until this month; and/or;
- The service may have been provided during the month, but the provider has not yet issued an invoice for the service.

Regards

Manage Mode
Manage Mode
invoices@managemode.com.au

Support Area: Core Budget

Budget: $15,992.00 — Balance as at 05 Dec 2021 — $13,810.65

Assistance with daily life (includes Supported Independent Living)

Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
13 Dec 2021	NDIS-835-1	13 Dec 2021	Forward Focused Group	01_134_0117_8_1	Self-Management Capacity Building	$65.09

Assistance with social and community participation

Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
24 Dec 2021	INV-0116	01 Dec 2021 to 21 Dec 2021	The Hive	04_104_0125_6_1	Access Community Social And Rec Activities - Weekday Daytime	$1,259.06
24 Dec 2021	INV-0116	01 Dec 2021 to 21 Dec 2021	The Hive	04_104_0125_6_1	Access Community Social And Rec Activities - Weekday Daytime	$0.01
09 Dec 2021	2156-015	22 Nov 2021 to 05 Dec 2021	Directions Disability Support Services	04_112_0136_6_1_T	Group Activities In The Community - 1:2 - Standard - Saturday - TTP	$187.48
24 Dec 2021	2167-010	18 Dec 2021	Directions Disability Support Services	04_112_0136_6_1_T	Group Activities In The Community - 1:2 - Standard - Saturday - TTP	$187.48

Consumables

No transactions

Balance as at 04 Jan 2022 — $12,111.53

Support Area: Improved life choices

Budget: $2,739.15 — Balance as at 05 Dec 2021 — $2,089.00

Improved life choices

Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
04 Jan 2022	INV-0997	04 Jan 2022	Manage Mode	14_034_0127_8_3	Plan Management - Financial Administration	$104.45

Balance as at 04 Jan 2022 — $1,984.55

Support Area: Improved daily living skills

Budget: $27,158.60 — Balance as at 05 Dec 2021 — $24,303.60

Improved daily living skills						
Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
10 Dec 2021	I020257	10 Dec 2021	Down South Therapy Services	15_053_0128_1_3	Therapy Assistant - Level 2	$108.49
14 Dec 2021	I020545	14 Dec 2021	Down South Therapy Services	15_056_0128_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy	$180.00

Balance as at 04 Jan 2022 $24,015.11

Support Area: Coordination of Supports

Budget: $2,403.36 Balance as at 05 Dec 2021 $2,027.83

Coordination of Supports						
Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
13 Dec 2021	NDIS-835-1	13 Dec 2021	Forward Focused Group	07_002_0106_8_3	Level 2: Coordination Of Supports	$250.35

Balance as at 04 Jan 2022 $1,777.48

Support Area: Finding and keeping a job

Budget: $22,789.44 Balance as at 05 Dec 2021 $22,789.44

Finding and keeping a job
No transactions

Balance as at 04 Jan 2022 $22,789.44

GR03

FORWARD FOCUSED
YOU ARE OUR FOCUS

TAX INVOICE

Angelus Regali-Park
7 Scotia Pl
ARMADALE WA 6112
AUSTRALIA

Invoice Date
3 Jan 2022

Invoice Number
INV-0557

Reference
NDIS 431035309

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_061_0115_1_1	STA & Assistance (Inc. Respite) - 1:1 Public Holiday - New Year's Day - 01/01/2022	1.00	3,458.93	GST Free	3,458.93
01_060_0115_1_1	STA And Assistance (Inc. Respite) - 1:1 - Sunday - 02/01/2022	1.00	2,782.77	GST Free	2,782.77
				Subtotal	6,241.70
				TOTAL AUD	**6,241.70**

Due Date: 10 Jan 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Angelus Regali-Park
Invoice Number	INV-0557
Amount Due	6,241.70
Due Date	10 Jan 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

GR04 PAGE 1 OF 1

TAX INVOICE

Angelus Regali-Park
7 Scotia Pl
ARMADALE WA 6112
AUSTRALIA

Invoice Date
25 Jan 2022

Invoice Number
NDIS-1136-1

Reference
NDIS 431035309

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
07_002_0106_8_3	Level 2: Coordination Of Supports - 18/01/2022	0.50	100.14	GST Free	50.07
07_002_0106_8_3	Level 2: Coordination Of Supports - 19/01/2022	1.00	100.14	GST Free	100.14
01_134_0117_8_1	Self-Management Capacity Building - 20/01/2022	0.50	65.09	GST Free	32.55
01_134_0117_8_1	Self-Management Capacity Building - 25/01/2022	0.50	65.09	GST Free	32.55
				Subtotal	215.31
				TOTAL AUD	**215.31**

Due Date: 31 Jan 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Angelus Regali-Park
Invoice Number	NDIS-1136-1
Amount Due	215.31
Due Date	31 Jan 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Lane, James

From: Tiaki Regali <tiakiregali@gmail.com>
Sent: Friday, 23 September 2022 4:09 PM
To: Holder, Raymond
Subject: Fwd: FW: N. YE Cruise / Respite
Attachments: image004.jpg

You don't often get email from tiakiregali@gmail.com. Learn why this is important

---------- Forwarded message ---------
From: **Tim Edwards** <tim@managemode.com.au>
Date: Fri, 28 Jan. 2022, 4:07 pm
Subject: FW: N. YE Cruise / Respite
To: Tiaki Regali <tiakiregali@gmail.com>

Hi Gina,

Hope you are well.

Rejaul has advised below that you have approved the respite invoice on 01st to 02nd of January? Is this correct?

Kind Regards,



Tim Edwards | Plan Manager

Manage Mode

e: tim@managemode.com.au

p: (08) 6115 6388

a: 1 Prowse Street, West Perth WA 6005

w: www.managemode.com.au

From: Rejaul Alam <rejaul.a@ffg.net.au>
Sent: Friday, 28 January 2022 1:26 PM

To: Tim Edwards <tim@managemode.com.au>
Cc: Danica H <danica.h@ffg.net.au>; Vida Reid <vida@ffg.net.au>; Jarrod Chitiz <jarrod@managemode.com.au>; Marc Eadie <marc@managemode.com.au>
Subject: RE: N. YE Cruise / Respite
Importance: High

Hi Tim,

Hope you are well.

I am following up on my previous email.

We have been advised by the participants that they have approved the invoices.

Could you please advise an ETA on the payments please.

Thank you,



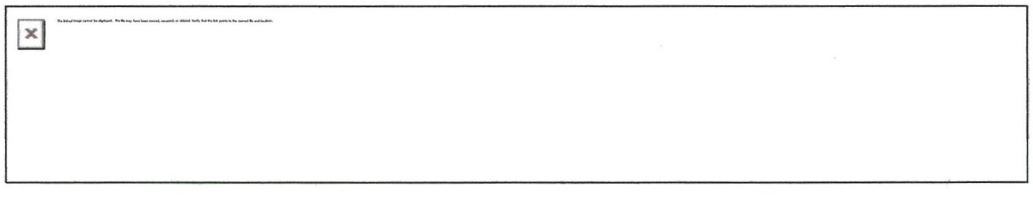


Rejaul Alam
Manager – Accounts & Finance at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478895054

E rejaul.a@ffg.net.au
W https://forwardfocusedgroup.com.au

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From: Rejaul Alam
Sent: Thursday, 20 January 2022 9:57 AM
To: Tim Edwards <tim@managemode.com.au>; Marc Eadie <marc@managemode.com.au>
Cc: Danica H <danica.h@ffg.net.au>; Vida Reid <vida@ffg.net.au>
Subject: RE: N. YE Cruise / Respite

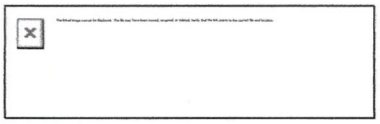
Hi Tim,

Thank you for your email.

Please advise payments once approved by the participants.

Have a great day.

Thank you,



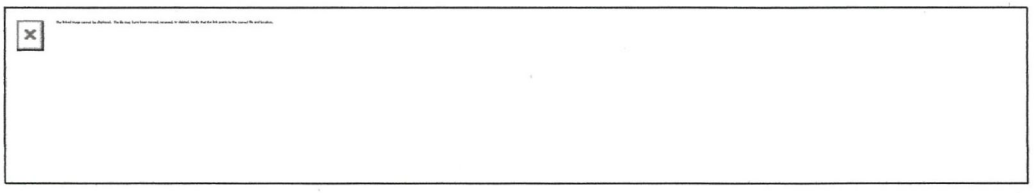


Rejaul Alam
Manager – Accounts & Finance at Forward Focused Group

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[Next to Dome Cafe]
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From: Tim Edwards <tim@managemode.com.au>
Sent: Thursday, 20 January 2022 9:36 AM
To: Rejaul Alam <rejaul.a@ffg.net.au>; Marc Eadie <marc@managemode.com.au>
Cc: Danica H <danica.h@ffg.net.au>
Subject: RE: NYE Cruise / Respite

Hi Rejaul,

Thanks for your email.

I recall the conversation in question and Vida suggested that this could be charged as respite as it was 48 hours care with 2 nights accommodation, I did not suggest this. This conversation was also why I was so confused when FFG were chasing invoices for both the 04_210_0125_6_1 invoices AND the respite. Anyhow, this is clear now. We will send the two invoices in question through to the participant / nominee for approval after which we will pay.

Kind Regards,

Tim Edwards | Plan Manager

Manage Mode

e: tim@managemode.com.au

p: (08) 6115 6388

a: 1 Prowse Street, West Perth WA 6005

w: www.managemode.com.au

From: Rejaul Alam <rejaul.a@ffg.net.au>
Sent: Wednesday, 19 January 2022 4:17 PM
To: Tim Edwards <tim@managemode.com.au>; Marc Eadie <marc@managemode.com.au>
Cc: Danica H <danica.h@ffg.net.au>
Subject: RE: NYE Cruise / Respite

Hi Tim,

Thank you for your response. @Marc Eadie thank you for your time on the phone.

So we are all on the same page- the only invoices we are seeking payment for are the Respite invoices.

This is to say,

- Payment needed for INV-0557 and INV-0554
- Please Ignore INV-0515 and INV-0547

Clarification : I recall our conversation between myself, Vida and Tim on the 24th of December. Time advised that Manage mode needed the agency clarification to pay for any invoices on 04_210_0125_6_1. We were advised to charge for the respite for prompt payments as the participants were provided respite for two days.

I hope that clarifies your query.

Please feel free to reach out if you need further assistance.

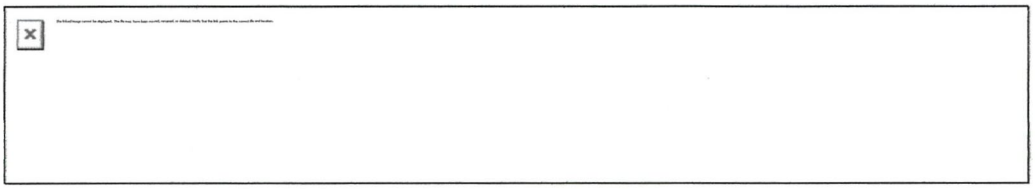
Thank you,

Rejaul Alam
Manager – Accounts & Finance at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478895054

E rejaul.a@ffg.net.au
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From: Tim Edwards <tim@managemode.com.au>
Sent: Wednesday, 19 January 2022 3:59 PM
To: Rejaul Alam <rejaul.a@ffg.net.au>
Cc: Marc Eadie <marc@managemode.com.au>
Subject: FW: NYE Cruise / Respite

Hi Rejaul,

Thanks for your email.

Jarrod doesn't recall mentioning I would call you back, hence why he didn't relay to me and this wasn't done.

Regardless, we would appreciate a written response on this one, happy to take a call post that to discuss. I sent the attached which we have yet to hear back on.

Kind Regards,



Tim Edwards | Plan Manager

Manage Mode

e: tim@managemode.com.au

p: (08) 6115 6388

a: 1 Prowse Street, West Perth WA 6005

w: www.managemode.com.au

From: Marc Eadie <marc@managemode.com.au>
Sent: Wednesday, 19 January 2022 1:16 PM
To: Tim Edwards <tim@managemode.com.au>
Subject: Fwd: NYE Cruise / Respite

a: Manage Mode Pty Ltd

e: marc@managemode.com.au

w: www.managemode.com.au

t: (08) 6115 6388

From: Rejaul Alam <rejaul.a@ffg.net.au>
Sent: Wednesday, January 19, 2022 12:28:29 PM
To: Marc Eadie <marc@managemode.com.au>
Cc: Jarrod Chitiz <jarrod@managemode.com.au>; Vida Reid <vida@ffg.net.au>; Danica H <danica.h@ffg.net.au>; Virginie Fanny-Dullo <virginie.f-d@ffg.net.au>
Subject: RE: NYE Cruise / Respite

Hi Merc,

I rang your office twice over the last week to discuss these invoices. I had a chat with Jarrod on Friday and he advised that Tim looking after our invoices and will call me back. I am still awaiting call back from Tim.

Please call me back and I will go through the invoices with you, Tim or your team.

Thank you,



Rejaul Alam
Manager – Accounts & Finance at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478895054

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From: Marc Eadie <marc@managemode.com.au>
Sent: Tuesday, 4 January 2022 4:33 PM
To: Vida Reid <vida@ffg.net.au>; Rejaul Alam <rejaul.a@ffg.net.au>
Cc: Jarrod Chitiz <jarrod@managemode.com.au>
Subject: NYE Cruise / Respite
Importance: High

Hi Vida and Rejaul,

FFG has sent some conflicting invoices, where it appears the new claim is for respite rather than the event (or perhaps a combination, however the dates are interlapping regardless). For example invoice INV-0547 appears to have been superseded by INV-0557?

As such I am uncertain as to what the current claims are as no credit notes have been provided that I am aware of.

For the participants we manage that may be involved with the event, can you please resend the applicable invoices and provide credit notes for the cancelled/original invoices.

I believe they are Angelus Regali-Park, Madeleine Robinson, James Loh. If there are others please send through the relevant invoices as well.

We can then assess the correct claims.

Kind regards,

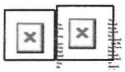


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